

Rumford Market case.—The leading authority upon this subject is *Sandford v. Keech*, commonly called the Rumford Market Case (*e*). A lessee of the profits of a market had

(*e*) Sel. Ch. Ca. 61.

will relieve, though there be no fraud; *Beard v. Campbell*, 2 A. K. Marsh. 125; *Freeman v. Curtis*, 51 Me. 140; *Storrs v. Barker*, 6 Johns. Ch. 169; *Magniac v. Thomson*, 2 Wall. Jr. 209; *Mellish v. Robertson*, 25 Vt. 608; *Loss v. Obry*, 7 C. E. Green, 52; *Sawyer v. Hovey*, 3 Allen, 331; *Andrews v. Ins. Co. 3 Mason*, 10; *Bloodgood v. Sears*, 64 Barb. 76.

Inadequacy of consideration may be a ground for relief, and that too without showing fraud; *Erwin v. Parham*, 12 How. 197; *Osgood v. Franklin*, 2 Johns. Ch. 1; *Powers v. Hale*, 5 Foster, 145; *Mann v. Betterly*, 21 Vt. 326; *Coster v. Griswold*, 4 Edw. 364; *Barnett v. Spratt*, 4 Ired. Eq. 171; *Horsey v. Hough*, 38 Md. 130; *Booker v. Anderson*, 35 Ill. 66; *Gasque v. Small*, 2 Strob. Eq. 72; *Esham v. Lamar*, 10 B. Mon. 43; especially if it be a contract with heirs; *Jenkins v. Pye*, 12 Pet. 258; *Poor v. Hazleton*, 15 N. H. 564; *Nimmo v. Davis*, 7 Tex. 26; *Trull v. Eastman*, 3 Met. 121; *Davidson v. Little*, 22 Pa. St. 252.

CONSTRUCTIVE FRAUD.—*Generally.*—This arises when a fiduciary relation exists, on slight suspicion or presumption; *Atkins v. Withers*, 94 N. C. 581; *Post v. Martin*, 91 N. Y. 539; see *Huguenin v. Baseley*, 2 W. & J. Lead. Cas. in Eq. 1156 and notes. If the beneficiary had competent independent advice, the transaction may stand; *Ashton v. Thompson*, 32 Minn. 25; fiduciary relation has an effect in case of values; *Cheney v. Gleason*, 125 Mass. 166; where party could not read deed, and thought it was different; *Rider v. Kelso*, 53 Ia. 367.

Attorney and client.—Transactions between them are voidable; *Post v. Mason*, 91 N. Y. 539; *Yeamans v. James*, 27 Kan. 195; attorney may purchase from his client; *Stout v. Smith*, 98 N. Y. 25; *Alwood v. Mansfield*, 59 Ill. 496; and if client suffers no damage the courts will not interfere; *Kisling v. Shaw*, 33 Cal. 425; but attorney may not purchase at judicial sales; *Gibbons v. Hoag*, 95 Ill. 45; *Ryan v. Ashton*, 42 Ia. 365; *Byers v. Surget*, 19 How. 303; attorney may receive a gratuity; *Whipple v. Barton*, 63 N. H. 613; *Shipman v. Furniss*, 69 Ala. 555; the burden of showing the fairness of the transaction is on the attorney; *Evans v. Ellis*, 5 Denio, 640; *Brock v. Barnes*, 40 Barb. 521; *Greenfield's Est.* 2 Harris, 489; *Howell v. Ransom*, 11 Paige, 538; attorney deposited collection in own name, but not in his private account, no trust created; *Naltner v. Dolan*, 108 Ind. 500.

Principal and agent.—Burden of proving fairness of transaction between them is on the agent; *Farmer v. Farmer*, 39 N. J. Eq. 211; see *Porter v. Woodruff*, 36 N. J. Eq. 174; *Cheney v. Gleason*, 125 Mass. 166; *Hunter v. Hunter*, 50 Mo. 445; agent must act in utmost good faith; *Murray v. Beard*, 102 N. Y. 505; cannot charge for his services if interested; *Durgin v. Somers*, 117 Mass. 55; *Smith v. Townsend*, 109 Mass. 500; *Rice v. Wood*, 113 Mass. 133; *Stewart v. Duffy*, 16 Ill. 147; unless there is a special agreement; *Stewart v. Mather*, 32 Wis. 344; agent may become a trustee; *Cowperthwaite v. Bank*, 102 Pa. St. 397; fiduciary relation alone is not enough to compel an agent to transfer to his principal; *Collins v. Sullivan*, 135 Mass. 461; *Parsons v. Phelan*, 134 Mass. 109; but otherwise if he use his knowledge against his employer; *Ringo v. Binns*, 10 Pet. 279; *Peabody v. Norfolk*, 98 Mass. 452; see also